

24STCV34236 24STCV34236

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-08-03

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C08%2F03%2F2026

Source SHA-256: 0a4dec922cf14423889c2a641ed593dc2e516e4ad87f7456916abe3369f18308

Case Number: 24STCV34236 Hearing Date: August 3, 2026 Dept: 224

Raya v. General Motors

TENTATIVE RULING

The demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. The Motion to Strike punitive damages from the prayer for relief is GRANTED.

Defendant to file an Answer in 30 days.

ANALYSIS

INTRODUCTION

This is a lemon law case. On or about August 1, 2023, Plaintiff Miguel Gonzalez Raya ("Plaintiff") entered into a warranty contract with Defendant General Motors, LLC ("Defendant") regarding a 2023 Chevrolet Suburban ("Vehicle"). (FAC, ¶ 6.) Plaintiff alleges that defects and nonconformities to warranty manifested themselves which substantially impair the use, value, or safety of the Vehicle, and the value of the Vehicle is worthless and/or de minimis. (Id. at ¶¶ 11-13.)

On December 26, 2024, Plaintiff filed a Complaint. On October 21, 2025, Plaintiff filed the operative First Amended Complaint ("FAC") alleging (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of Implied Warranty of Merchantability; and (5) Fraudulent Inducement – Concealment.

On November 17, 2025, Defendant filed this Demurrer with Motion to Strike.

On July 22, 2026, Plaintiff filed a Notice of Non-Opposition to Defendant's Demurrer.

DEMURRER

LEGAL STANDARD

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (*Ibid.*) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.)

“The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in section 430.30, to the pleading on any one or more of the following grounds... (e) the pleading does not state facts sufficient to constitute a cause of action. (f) The pleading is uncertain. As used in this subdivision, “uncertain” includes ambiguous and unintelligible.” (Code Civ. Proc. [AW13.1]§ 430.10.) “[D]emurrers for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal. App. 5th[AW14.1] 677, 695.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.* [AW15.1]; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245).

DISCUSSION

Defendant demurs to the fifth cause of action for Fraudulent Inducement – Concealment on the grounds that it fails to plead fraud with the requisite specificity and fails to allege a transactional relationship giving rise to a duty to disclose.

Defendant argues that the cause of action fails to allege (i) the identity of the individuals at GM who purportedly concealed material facts or made untrue representations about his Suburban (ii) their authority to speak and act on behalf of GM, (iii) GM’s knowledge about alleged defects in Plaintiff’s Suburban at the time of purchase, (iv) any interactions with GM before or during the purchase of his Suburban, or (v) GM’s intent to induce reliance by Plaintiff to purchase the specific Suburban at issue. Additionally, Plaintiff failed to allege that Plaintiff purchased the Vehicle directly from Defendant or otherwise entered into a transaction with Defendant, thus, Plaintiff has not alleged facts demonstrating that Defendant was under a duty to disclose.

Fraud based on concealment requires that “(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311 (*Bigler-Engler*).) “Even under the strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party.” (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1256, 1384.)

An essential element of intentional concealment includes the duty to disclose, which must be based upon a transaction, or a special relationship, between plaintiff and defendant. (*Id.* at p. 314.) “There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts.’” (*Id.* at p. 311.) “[O]ther than the first instance, in which there must be a fiduciary relationship between the parties, ‘the other three circumstances in which nondisclosure may be actionable presuppose[] the existence of some other relationship between the plaintiff and defendant in which a duty to disclose can arise. . . . “[W]here material facts are known to one party and not to the other, failure to disclose them is not actionable fraud unless there is some relationship between the parties which gives rise to a duty to disclose such known facts.” [Citation.]’ [Citation.]” (*Hoffman v. 162 North Wolfe LLC*

(2014) 228 Cal.App.4th 1178, 1187 (Hoffman).) “Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.)

The FAC alleges that Defendant knew or should have known about the Engine Defect through its exclusive knowledge of non-public, internal data about the Engine Defect. (FAC, ¶ 52.) The FAC also alleges that Defendants actively concealed the Engine Defect and failed to disclose the defect to Plaintiff at the time of purchase. (Ibid.) The FAC also alleges that Defendant had superior and exclusive knowledge of the Engine Defect and knew or should have known that the Engine Defect was not known or reasonably discoverable by Plaintiff before the purchase of the Vehicle. (Id. at ¶ 57.) The FAC also alleges that had Plaintiff known about the defects at the time of sale, Plaintiff would not have purchased the Vehicle. (Id. at ¶ 55.) The FAC further alleges that Defendant never disclosed the Engine Defect to Plaintiff prior to the purchase of the Vehicle or at any point during Plaintiff’s ownership. (Id. at ¶ 63.) These allegations are specific enough to allege the information that was concealed and the danger posed. (See Jones v. ConocoPhillips Co. (2011) 198 Cal.App.4th 1187, 1199-1200.)

However, Plaintiff does not allege facts showing the existence of a relationship between the parties that gives rise to a duty to disclose facts. Nowhere in the FAC does Plaintiff allege that Plaintiff directly bought the Vehicle from Defendant. Instead, Plaintiff alleges to have purchased the Vehicle at “Delano Chevrolet Buick GMC in Delano, CA (GM’s authorized dealer).” (FAC, ¶ 6.) Plaintiff also has failed to allege that the authorized dealership was an agent of Defendant. Nor are conclusory statements that the dealership is Defendant’s agent without more sufficient to establish a direct transactional relationship. (See Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844 [finding the allegations sufficient where plaintiffs alleged they bought the car from a dealership and facts that the dealership was an agent of defendant]; see also Epperson v. General Motors, LLC (S.D. Cal. 2023) 706 F.Supp.3d 1031, 1045 [finding the allegations insufficient where the complaint merely concluded that stated that the vehicle was bought from an authorized dealership and agent of defendant].) Thus, Plaintiff has failed to allege sufficient facts to show Defendant was under a duty to disclose the fact to Plaintiff.

Accordingly, the demurrer is sustained. As Plaintiff did not oppose the demurrer, or offer facts that would cure the defects, the demurrer is sustained without leave to amend.

MOTION TO STRIKE

LEGAL STANDARD

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

DISCUSSION

Defendant moves to strike the demand for punitive damages in the Prayer for Relief. Defendant argues that punitive damages are not recoverable for Song-Beverly Consumer Warranty Act claims and that the FAC fails to state facts sufficient to support punitive damages.

The Court agrees with Defendant that punitive damages are not recoverable for Song-Beverly Consumer Warranty Act claims. (See Covert v. FCA USA, LLC (2022) 73 Cal.App.5th 821, 828.) Instead, the Song-Beverly Consumer Warranty Act allows for civil penalties. (Civ. Code, § 1794.) Accordingly, punitive damages may not properly be sought for the Song-Beverly Consumer Warranty Act claims. However, while the Prayer for Relief requests punitive damages generally, the specific allegations for the Song-Beverly Consumer Warranty Act claims do not show that Plaintiff is seeking punitive damages for those claims. Accordingly, the motion to strike punitive damages as to the Song-Beverly Consumer Warranty

claims is GRANTED. Requests for punitive damages are stricken.

As to the remaining cause of action for Fraudulent Inducement – Concealment, the Court has sustained the demurrer to the cause of action, thus the motion GRANTS the motion to strike as to the fraudulent concealment cause of action.

CONCLUSION

The demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND. The Motion to Strike punitive damages from the prayer for relief is GRANTED.

Defendant to file an Answer in 30 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final ruling or take the matter off calendar at its discretion.